

Mullane v. Central Hanover Bank & Trust Co.

Citation

Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306 (1950). Supreme Court of the United States, argued February 8, 1950, decided April 24, 1950. Justice Jackson wrote the opinion for the Court; Justice Burton dissented, and Justice Douglas took no part. The case begins at casebook page 237 and concerns what notice due process requires before a court may enter a judgment that binds people who were not personally served. [Full judicial opinion](#).

Parties

Central Hanover Bank and Trust Company, a New York trust company, was the trustee of a common trust fund and the petitioner in the state accounting proceeding; in the Supreme Court it was an appellee. Mullane was the appellant. The Surrogate's Court had appointed him special guardian and attorney for all persons, known or unknown and not otherwise appearing, who had or might later have an interest in the income of the fund. A special guardian is a representative the court appoints to protect people who are absent or unable to act for themselves. Vaughan, also an appellee, had been appointed to represent those interested in the principal. The beneficiaries themselves never appeared. The trust company sought a decree approving its account that would bind every beneficiary; Mullane sought to defeat the decree on the ground that the beneficiaries had not received constitutionally adequate notice.

Material Facts

New York Banking Law § 100-c allowed a trust company, with the approval of the State Banking Board, to pool the assets of an unlimited number of trusts for which it was trustee into a single fund for investment. Each participating trust shared ratably in the fund's income, gains, losses, and expenses, but no trust or beneficiary owned any particular asset, and exclusive management rested with the trust company. Pooling gave small trusts the diversification and economy of management that only large trusts could otherwise obtain; the District of Columbia and some thirty other states had similar statutes. The trustee had to account to the court twelve to fifteen months after establishing a fund and every three years after that. A decree settling an account was binding and conclusive, as to any matter set forth in the account, on everyone with an interest in the common fund or in any participating trust. 339 U.S. at 307-09.

Central Hanover established a common fund in January 1946 and, in March 1947, petitioned the Surrogate's Court, New York's court for estates and trusts, to settle its first account. During the accounting period 113 trusts participated, about half inter vivos (created by a living settlor) and half testamentary (created by a will), with gross capital of nearly three million dollars. The record did not show the number or residence of the beneficiaries, but they were many, and some lived outside New York. The only notice of the accounting was the notice the statute required under § 100-c(12): publication in a local newspaper for four successive weeks, stating the trust company's name and address, the name and date of establishment of the fund, and a list of the participating trusts. The notice named no beneficiary.

Earlier, when each trust first entered the fund, the trust company had mailed notice under § 100-c(9) to every beneficiary of full age and sound mind whose name and address were then known and who was entitled to share in income or, if the relevant event had already occurred, in principal. That notice enclosed the statutory provisions on notice and judicial settlement. As the Supreme Court read the New York decision, the decree would settle all questions respecting the management of the fund and would seal and terminate every claim the beneficiaries might have against the trust company for improper management during the accounting

period. The beneficiaries' interests also bore the fees and expenses of the guardians appointed to represent them. *Id. at 309-11.*

Procedural History

Mullane appeared specially, meaning that he appeared only to contest the court's authority without submitting to it. He objected that the statutory notice was inadequate under the Due Process Clause of the Fourteenth Amendment, so the Surrogate's Court lacked jurisdiction to enter a final and binding decree. The Surrogate overruled the objections and entered a final decree accepting the accounts. The Appellate Division affirmed, and the New York Court of Appeals affirmed, holding the notice constitutionally sufficient. The case reached the Supreme Court on appeal, the route then available when a state's highest court upheld a state statute against a federal constitutional challenge. *Id. at 309-11.*

Issue

Did New York have power to bind beneficiaries who lived outside the state and were not personally served, when the decree adjudicated personal claims against the trustee rather than title to specific property, and *Pennoyer v. Neff* limited a state's power over nonresidents in actions in personam? If so, was notice by newspaper publication constitutionally adequate for each category of beneficiary: those whose interests or whereabouts could not be ascertained with due diligence, those whose interests were conjectural or future, and known present beneficiaries whose addresses the trustee had on its books?

Rule and Holding

The State's power to settle the account did not depend on whether the proceeding was labeled in rem, quasi in rem, or in personam. New York's interest in closing trusts that exist by the grace of its laws and are administered under the supervision of its courts established the right of its courts to determine the interests of all claimants, resident or nonresident, provided the procedure gave them full opportunity to appear and be heard.

Due process requires, before any proceeding that is to be accorded finality, notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections. The notice must reasonably convey the required information and allow a reasonable time to appear. The means chosen must be such as one desirous of actually informing the absentee might reasonably adopt. A method is valid if it is reasonably certain to inform those affected or, where conditions do not reasonably permit such notice, if it is not substantially less likely to bring home notice than other feasible and customary substitutes.

Publication was sufficient for beneficiaries whose interests or whereabouts could not be ascertained with due diligence and for those whose interests were conjectural or future. It was insufficient for known present beneficiaries of known residence, who were entitled at least to notice by ordinary mail to the addresses in the trustee's records. Personal service was not required. The Court held the notice prescribed by § 100-c(12) incompatible with the Fourteenth Amendment as a basis for an adjudication depriving known persons whose whereabouts are also known of substantial property rights. *Id. at 311-20.*

Judgment

The Supreme Court reversed the judgment of the New York Court of Appeals and remanded for further proceedings not inconsistent with its opinion. The Court expressly overruled the constitutional objections insofar as they were made on behalf of beneficiaries whose interests or addresses were unknown to the trustee; the defect lay in the notice to known present beneficiaries.

Reasoning

Mullane's first argument drew on *Pennoyer*. An action in personam determines a person's own rights and obligations, and under *Pennoyer* it required personal service within the state to bind a nonresident. An action in rem determines rights in a thing and binds everyone. Because the decree affected neither title to nor possession of any thing and adjudicated only the beneficiaries' personal rights to surcharge their trustee, Mullane argued, it was in personam and could not bind nonresidents served only by publication. The Court declined to decide the case by classification. Proceedings to settle fiduciary accounts had been called in rem, quasi in rem, and in the nature of a proceeding in rem, and this one had features of both categories. The distinctions had originated in the property law of a very different legal system, and the rise of intangible property had blurred them. The requirements of the Fourteenth Amendment, Justice Jackson wrote, do not depend on a classification so elusive and so variable from state to state. The State's interest in closing trusts created under its law and supervised by its courts justified adjudicating the claims of all beneficiaries, wherever they lived, if the procedure gave them full opportunity to be heard. *Id.* at 311-13.

The question of power therefore gave way to the question of opportunity. Whatever else the Due Process Clause requires, a deprivation of life, liberty, or property by adjudication must be preceded by notice and an opportunity for hearing appropriate to the nature of the case. The accounting could deprive beneficiaries of property in two ways: it could cut off their claims against the trustee for negligent or illegal impairment of their interests, and it could diminish their interests by allowing fees and expenses to a guardian who conducted a possibly fruitless contest in their names but without their knowledge. Against the State's vital interest in a final settlement stood the individual's interest, which *Grannis v. Ordean* defined as the opportunity to be heard. That right has little reality or worth unless a person is informed that the matter is pending and can choose whether to appear or default, acquiesce or contest. *Id.* at 313-14.

Personal service of written notice within the jurisdiction is the classic form of notice and is always adequate, but the Court had never held it indispensable in every case, and a reading of the Due Process Clause that placed impossible or impractical obstacles in the way of settling trusts could not be justified. The Court therefore stated a functional standard: notice reasonably calculated, under all the circumstances, to apprise interested parties and afford them an opportunity to object, conveying the required information and allowing a reasonable time to respond. It added that "when notice is a person's due, process which is a mere gesture is not due process." The means employed must be those that a person who actually wanted to inform the absentee might reasonably use. *Id.* at 313-15.

Publication failed that test as a way of informing known people. It would be idle, the Court wrote, to pretend that publication alone is a reliable means of telling interested parties that their rights are before the courts. Chance alone brings a small-type advertisement in the back pages of a newspaper to the attention of even a local resident, and the odds are large that it will never reach someone who lives outside the paper's circulation area. This notice did not even name the beneficiaries whose attention it was supposed to attract, so acquaintances could not call it to their attention. Measured against actual notice, the Court regarded it as no more than a feint. *Id.* at 315-16.

Publication has traditionally been acceptable as a supplement to action that itself is likely to warn an owner. Libel of a ship (an admiralty proceeding against a vessel), attachment of a chattel, or entry upon real estate in the name of the law may reasonably be expected to come promptly to the owner's attention, because owners of tangible property usually arrange to learn of direct attacks on it. A state may assume that someone who leaves property within its borders has either abandoned it or left a caretaker who will warn of danger. Neither assumption held here. The beneficiaries had not abandoned their interests, and their caretaker, the trustee, became their adversary in the accounting. The trustee was released from any duty to warn them, and not even the special guardian was required or apparently expected to communicate with them. *Id.* at 316.

Publication remained acceptable where nothing better was reasonably possible. For beneficiaries whose interests or whereabouts could not be ascertained with due diligence, an indirect and even probably futile means of notice was all the situation permitted, and in the typical case it was not much more likely to fail than any alternative a legislature could prescribe. The State could also dispense with more certain notice to beneficiaries whose interests were conjectural or future, or who could be discovered only by investigation and had not come to the trustee's knowledge in the ordinary course of business. Keeping track of changes among income beneficiaries, presumptive remaindermen (those expected to take the principal when the income interests end), and the larger number of contingent beneficiaries would impose a severe burden on the plan and would likely dissipate its advantages. Due process did not require those searches. *Id.* at 317-18.

Known present beneficiaries of known residence stood on a different footing. Exceptions made in the name of necessity do not sweep away the rule that, within the limits of practicability, notice must be reasonably calculated to reach interested parties; where names and addresses are at hand, the reasons for resorting to less reliable means disappear. The trustee had the income beneficiaries' names and addresses on its books and periodically sent them their income. Mailing them a copy of the statute months or years before the accounting did not satisfy the requirement. *Id.* at 318.

The Court did not require personal service, even on known beneficiaries. The trust presupposed a large number of small interests, and each beneficiary's interest in the integrity of the fund and the fidelity of the trustee was identical to that of the class. Objections sustained on behalf of any beneficiary would benefit all, so notice reasonably certain to reach most of those interested in objecting would safeguard the interests of everyone, and reasonable risks that notice might not reach every beneficiary were justified. The Court also observed that personal service outside the issuing state would serve the end of actual notice, whatever power of compulsion it lacked, a remark that separates the function of notice from the question of a court's power. *Id.* at 318-19.

The statutory notice to known beneficiaries was inadequate because it was not reasonably calculated to reach people who could easily be informed by other means at hand; its failure to reach everyone was not the constitutional defect. The mails were an efficient and inexpensive means of communication, and the trust company's own mailing when the fund was established showed that mailed notice at the time of accounting would not seriously burden the plan. The Court asked whether publication would satisfy a prudent businessman, counting his pennies but finding it in his interest to convey information to many people whose names and addresses were in his files, and concluded that it would not. Quoting *McDonald v. Mabee*, it warned that great caution should be used not to let fiction deny the fair play that can be secured only by a pretty close adhesion to fact. *Id.* at 319-20.

Separate Opinions

Justice Burton dissented. He emphasized that common trusts are available only when the instruments creating the participating trusts permit participation in a common fund, and he regarded the question whether further notice should supplement the notice and representation New York provided as one properly within the State's discretion; in his view the Federal Constitution did not require more. Justice Douglas took no part in the consideration or decision of the case. The casebook omits the dissent. *Id.* at 320 (*Burton, J., dissenting*).

Notes

Mullane separates two requirements that *Pennoyer* had combined: a court's power over the parties or the property, and the notice that must precede a binding judgment. The Court treated New York's power as established by the State's interest in trusts created under its law and then tested the notice independently. A court with power over a defendant can still violate due process by proceeding on inadequate notice, and personal service outside the forum can give excellent notice while conferring no power. The case also reduced the significance of the in rem and in personam labels for notice purposes; *Shaffer v. Heitner*, which subjected all assertions of state-court jurisdiction to the minimum-contacts standard, later made a similar move for jurisdiction.

The standard evaluates the method chosen, judged by what the sender knew or could reasonably learn, rather than whether the party actually received notice. It has two branches: a method reasonably certain to inform, or, where that is not reasonably possible, a method not substantially less likely to reach the party than feasible and customary substitutes. The analysis proceeds by sorting interested parties into categories, as the Court did: known parties with known addresses (mail at least), parties who cannot be identified or located with due diligence (publication can suffice), and parties with conjectural or remote interests (publication can suffice because investigation costs would defeat the proceeding). The Court's weighing of the individual interest against the cost of better notice anticipates the balancing the Court later formalized in *Mathews v. Eldridge*.

Two limits deserve attention. The Court did not require personal service, and its willingness to accept some risk that individual beneficiaries would not receive notice rested on the identity of interests within the class, reasoning that fits representative proceedings better than ordinary two-party suits. In *Eisen v. Carlisle & Jacquelin*, 417 U.S. 156 (1974), the Court relied on *Mullane* in requiring individual notice to all members of a Rule 23(b)(3) class who can be identified through reasonable effort. The notes that follow *Mullane* in the casebook, summarized in the next section of this packet, apply the known-address rule to tax sales, condemnation, probate claims, eviction, and forfeiture.

Reasonable Notice After Mullane

Sources

Casebook pp. 245-251, Notes and Questions 1 through 11 following *Mullane*. The notes trace how courts applied *Mullane*'s reasonable-calculation standard to publication, posting, mail, statutory agents, the time allowed to respond, the content of the notice, and advance waivers of notice. Citations follow the casebook. The recurring question is what the sender knew, or could reasonably have learned, when it chose its method of notice.

Publication When Names and Addresses Are Known

McDonald v. Mabee, 243 U.S. 90 (1917), which *Mullane* relied on, involved a suit on a promissory note against a Texas domiciliary who had left the state to take up a domicile elsewhere while his family remained in Texas. Service was attempted by publication in a local newspaper once a week for four weeks, Mabee never appeared, and the Supreme Court held the resulting judgment void: to dispense with personal service, the substitute most likely to reach the defendant is the least that ought to be required. *Mullane*'s own formulation is somewhat more forgiving, because it accepts a method that is not substantially less likely to reach the party than feasible substitutes; the casebook asks whether *Mullane* permits constructive service only when it is the method most likely to succeed.

The Court then applied the known-address rule to government proceedings against property. In *Walker v. City of Hutchinson*, 352 U.S. 112 (1956), notice of a condemnation proceeding (a government taking of private property for public use) by publication in a local newspaper was inadequate for a resident owner whose name was known from official records. In *Schroeder v. City of New York*, 371 U.S. 208 (1962), newspaper notice in two small communities far from vacant land, together with signs posted on trees near the property, was inadequate because the owner's name and address could be found in deed records and tax rolls.

Mennonite Board of Missions v. Adams, 462 U.S. 791 (1983), extended the rule to a mortgagee whose interest would be affected by a tax sale. Because the mortgagee was identified in a publicly recorded mortgage, publication and posting had to be supplemented by mail to its last known address or by personal service; notice by mail or other means as certain to ensure actual notice is a minimum constitutional precondition to a proceeding that will adversely affect any party whose name and address are reasonably ascertainable. Justice O'Connor, joined by Justices Powell and Rehnquist, dissented on the ground that the majority had adopted a bright-line rule at odds with *Mullane*'s balancing. Five years later Justice O'Connor wrote for the Court in *Tulsa Professional Collection Services, Inc. v. Pope*, 485 U.S. 478 (1988), which held that Oklahoma's probate nonclaim statute, barring creditors' claims not filed within two months after published notice, could not bar a known or reasonably ascertainable creditor (there, a hospital owed for the decedent's care) without actual notice. The Court added that actual notice may be dispensed with for creditors whose claims are merely conjectural.

Posting and Mail

Greene v. Lindsey, 456 U.S. 444 (1982), held that posting eviction notices on apartment doors in a public housing project was inadequate where process servers knew that such notices were "not infrequently" removed by children or other tenants; in those circumstances due process required notice by mail. Justice O'Connor, joined by Chief Justice Burger and Justice Rehnquist, dissented, questioning whether mail is more reliable than posting and noting that unattended mailboxes are subject to theft. The case shows that *Mullane* asks about the reliability of a method in the circumstances the sender knew, not in the abstract. The casebook also asks whether the tenants' interest in avoiding public posting of their financial troubles should count in the analysis.

Actual Receipt and Follow-Up

Dusenbery v. United States, 534 U.S. 161 (2002), involved the forfeiture of about \$30,000 and a car belonging to a federal prisoner. The FBI published notice and sent certified letters to the prison, to his residence at the time of arrest, and to his stepmother's address, and the prison followed logged procedures for delivering certified mail to inmates. The Court held the notice adequate: due process does not require actual receipt, and the government need not make heroic efforts to ensure delivery. Justice Ginsburg, joined by Justices Stevens, Souter, and Breyer, dissented on the ground that the notice was substantially less likely to succeed than a feasible alternative. No Justice treated the absence of actual notice as itself unconstitutional.

Jones v. Flowers, 547 U.S. 220 (2006), qualified that approach. When a mailed notice of a tax sale came back unclaimed, the State had to take reasonable additional steps to notify the owner if it was practicable to do so. Chief Justice Roberts reasoned that no one who actually wanted to inform an owner would do nothing after learning that the letter had failed, and he identified reasonable steps: resending the notice by regular mail, posting it on the front door, or addressing mail to the "occupant." The State was not required to search phone books or tax rolls for a new address. Justice Thomas, joined by Justices Scalia and Kennedy, dissented, arguing that reasonableness must be judged when notice is sent and that a duty triggered by later information has no natural end point. Earlier, *Covey v. Town of Somers*, 351 U.S. 141 (1956), held mailed notice of a tax foreclosure inadequate when sent to a person the town knew had been adjudged insane and committed to a hospital without a guardian. Together, *Covey* and *Jones* show that knowledge that a method will fail, whether acquired before or after sending, affects what due process requires.

Statutory Agents

Wuchter v. Pizzutti, 276 U.S. 13 (1928), involved a nonresident-motorist statute like the one upheld in *Hess v. Pawloski*, which authorized service on the Secretary of State. The statute did not require that notice be sent to the nonresident, and a divided Court held it invalid even though the defendant in fact received notice. A statute of this kind must itself require the plaintiff or the official receiving service to communicate with the defendant. The case measures the statutory scheme rather than the result in a particular case. *Szukhent* later distinguished *Wuchter* as a limit on state statutory schemes rather than on private contractual appointments of an agent.

Time and Content of Notice

Notice must allow adequate time to respond. In *Roller v. Holly*, 176 U.S. 398 (1900), a defendant served in Virginia was required to defend an action in Texas five days later, and the Court held the procedure violated due process. Federal Rule 12(a) now allows 21 days after service, or 60 days after a waiver request is sent.

Notice after Mullane (continued)

Notice must also convey the information a party needs to respond. In *Aguchak v. Montgomery Ward Co.*, 520 P.2d 1352 (Alaska 1974), a seller sued rural buyers of a snowmobile and a freezer in small-claims court and obtained a default judgment of \$988.22 plus costs. The summons did not tell the buyers that they could appear by written pleading or that they could request a change of venue, and travel to court would have required an overnight stay costing \$186. The Supreme Court of Alaska held that a small-claims summons must include that information and set aside the default judgment.

Advance Waiver of Notice

A cognovit note is a written instrument in which a debtor authorizes entry of judgment against it without notice or hearing if it does not pay when due; it waives prior notice, bars the assertion of defenses, and forecloses appeal from the resulting judgment. In *D.H. Overmyer Co. v. Frick Co.*, 405 U.S. 174 (1972), the Court held that enforcing a cognovit note does not per se violate due process and that validity depends on the circumstances, including consideration for the waiver and the parties' relative bargaining power. *Fuentes v. Shevin* later distinguished *Overmyer* when it refused to find a waiver in a consumer's printed installment contract.

Application

Start with the proceeding. *Mullane* applies to any proceeding that will be accorded finality and can deprive a person of property, including tax sales, probate claim bars, evictions, and forfeitures. Identify each class of interested parties and ask what the sender knew or could reasonably ascertain when it gave notice. A name and address available from the sender's own files or from public records call for mail or an equally reliable method; a party who cannot be located with due diligence may be notified by publication. Next, ask whether the method was reliable in the circumstances the sender actually knew, including known reasons it would fail, such as posted notices that disappear, an addressee known to be incompetent, or mail returned unclaimed. Finally, check the time allowed to respond, the information the notice conveyed, and whether the party validly waived notice in advance.

Federal Rule 4: Service of Process

Sources

Federal Rule of Civil Procedure 4 (text as last amended in 2016) and casebook pp. 251-272. Service refers to the act of delivering notice of a suit; process refers to the documents delivered, chiefly the summons, the court's formal notice directing the defendant to respond. Rule 4 translates *Mullane's* constitutional standard into specific authorized methods, so a method Rule 4 does not authorize can be defective even if it would satisfy due process. Courts often forgive technical defects when the defendant received actual notice; the casebook asks whether that tolerance extends to methods used without required court authorization, citing *De Gazelle Group, Inc. v. Tamaz Trading Establishment*, 817 F.3d 747 (11th Cir. 2016). Rule 12(b)(4) and (5) supply the motions for challenging defective process and service. [Rule 4](#).

Summons, Issuance, and Who Serves

Under Rule 3, a federal action is commenced by filing a complaint. Rule 4(a) requires the summons to name the court and the parties, be directed to the defendant, state the name and address of the plaintiff's attorney (or of an unrepresented plaintiff), state the time within which the defendant must appear and defend, warn that failure to do so will result in a default judgment, and bear the clerk's signature and the court's seal. Under Rule 4(b), the plaintiff presents the summons to the clerk after filing the complaint, and the clerk issues a summons for each defendant. Rule 4(c) requires the summons to be served with a copy of the complaint and makes the plaintiff responsible for service within the Rule 4(m) period. Any person who is at least 18 years old and not a party may serve. The court may order service by a United States marshal on the plaintiff's request and must do so for a plaintiff proceeding in forma pauperis (permitted to litigate without paying court fees) or as a seaman under the statute that allows seamen to sue without prepaying fees.

Waiver of Service: Rule 4(d)

Rule 4(d) imposes on individuals, corporations, and associations subject to service under Rules 4(e), (f), or (h) a duty to avoid unnecessary expenses of serving the summons. The rule has a history the casebook traces. In 1982 Congress rejected a proposed amendment that would have authorized service by registered or certified mail, amid concerns about illegible return receipts, unclaimed mail, and default judgments against people who never received the papers. In 1983 Congress adopted a system modeled on California's, under which the summons and complaint could be mailed by first-class mail with an acknowledgment form, and a defendant who failed without good cause to return it had to pay the cost of personal service. Because that system depended on the defendant's cooperation, the 1993 amendments replaced it with the current request to waive service.

The plaintiff's request must be in writing and addressed to the individual defendant or to an officer or authorized agent of an entity; name the court; include a copy of the complaint, two copies of the waiver form, and a prepaid means of returning one; inform the defendant of the consequences of waiving and not waiving; state the date the request is sent; give the defendant a reasonable time of at least 30 days to return the waiver (60 days if the request is sent outside any judicial district of the United States); and be sent by first-class mail or other reliable means. The 1993 Advisory Committee Note to the 1993 amendment approved the use of electronic means. A defendant located in the United States who fails without good cause to sign and return a requested waiver must pay the expenses later incurred in making service and the reasonable expenses, including attorney's fees, of any motion required to collect them.

The incentive to waive is time. A defendant who timely returns a waiver need not answer until 60 days after the request was sent (90 days if sent outside the United States), compared with 21 days after formal service

under Rule 12(a). When the plaintiff files the waiver, no proof of service is required, and the rules apply as if the summons and complaint had been served when the waiver was filed. Waiving service does not waive objections to personal jurisdiction or venue. Because service is treated as occurring only when the waiver is filed, a plaintiff facing a statute of limitations that runs until service may be safer serving formally than waiting for a waiver; the casebook poses that question in its notes.

Individuals in the United States: Rule 4(e)

Rule 4(e)(1) permits service by any method allowed by the law of the state where the district court sits or where service is made. Rule 4(e)(2) adds three federal methods: (A) delivering a copy of the summons and complaint to the individual personally; (B) leaving a copy at the individual's dwelling or usual place of abode with someone of suitable age and discretion who resides there; and (C) delivering a copy to an agent authorized by appointment or by law to receive service.

Personal delivery rarely raises doctrinal questions, but evasive defendants test what delivery requires. The casebook's excerpt from McKelway's 1935 *New Yorker* profile of process server Harry Grossman illustrates the legal phrase "place and leave with": courts held that throwing papers at James Gordon Bennett and striking him in the chest was not proper service, but that laying papers on the shoulder of a defendant hiding under his wife's petticoats was sufficient. Courts generally treat a server who is in the defendant's presence, makes clear what the papers are, and leaves them near a defendant who refuses to take them as having accomplished personal delivery.

Abode service turns on facts. In *National Development Co. v. Triad Holding Corp.*, 930 F.2d 253 (2d Cir. 1991), a Saudi citizen maintained twelve homes around the world. Papers were left with his housekeeper at his New York apartment, valued at \$20 to \$25 million, on a day he was actually living there. The Second Circuit held that a person can have more than one dwelling house or usual place of abode and that service at the one where the defendant was living that day was, if not the most likely method, reasonably calculated to give actual notice. The casebook asks whether the result should change if he had been at another residence that day.

Service on an agent authorized by appointment normally requires an actual appointment for the specific purpose of receiving process. A person's acceptance of process, or claim of authority, does not bind the defendant without evidence that the defendant intended to confer that authority. *National Equipment Rental, Ltd. v. Szukhent*, briefed separately, upheld an appointment made in a printed lease.

Corporations and Associations: Rule 4(h)

Rule 4(h)(1) permits service on a corporation, partnership, or unincorporated association in the United States either under state law, through Rule 4(e)(1), or by delivering the summons and complaint to an officer, a managing or general agent, or any other agent authorized by appointment or by law, with an additional mailing to the defendant if a statute appointing the agent so requires. Rule 4(h)(2) governs service abroad by reference to Rule 4(f), excluding personal delivery.

Courts read the categories functionally. In *Insurance Co. of North America v. S/S "Hellenic Challenger"*, 88 F.R.D. 545 (S.D.N.Y. 1980), a marshal left papers in an admiralty cargo suit with a claims adjuster while the claims manager, one of the few employees expressly authorized to accept service, was out sick. The adjuster misplaced the papers, and the defendant learned of the suit only when its bank account was attached after a default judgment. The court upheld service because the adjuster was so integrated into the organization that he would know what to do with the papers: he had accepted service at least twice before and worked next to

the claims manager, separated from him only by the manager's glass-walled office. His loss of the papers was a mistake in the ordinary course of the defendant's business and did not justify relief. By contrast, the casebook cites *American Institute of Certified Public Accountants v. Affinity Card, Inc.*, 8 F. Supp. 2d 372 (S.D.N.Y. 1998), which held service on the vice president of a different corporation sharing the defendant's office insufficient even though both corporations were owned by the same individual, who had received actual notice.

In *Fashion Page, Ltd. v. Zurich Insurance Co.*, 50 N.Y.2d 265 (1980), a receptionist sent a process server to a vice president's executive secretary, who said "I can take it." Rather than decide whether she was a managing agent, the New York Court of Appeals held her an agent authorized by appointment, because she had regularly accepted summonses for at least five years. A corporation may assign the task of accepting process, but it cannot escape the consequences of the procedures it establishes, and a process server may rely on corporate employees to identify the proper person.

Service Abroad: Rule 4(f)

Rule 4(f) governs service on an individual in a foreign country, and Rule 4(h)(2) applies most of it to entities. Rule 4(f)(1) authorizes any internationally agreed means reasonably calculated to give notice, principally the Hague Service Convention, which requires each contracting state to designate a Central Authority to receive and execute requests for service from other contracting states; the casebook counted 79 contracting states as of June 2021. Where no agreement applies or the agreement allows other means, Rule 4(f)(2) permits methods reasonably calculated to give notice: the foreign country's own methods, a letter rogatory (a formal request from one court to a foreign court for assistance), or, unless foreign law prohibits it, personal delivery or mail requiring a signed receipt sent by the clerk. Rule 4(f)(3) permits other means not prohibited by international agreement, as the court orders.

Several decisions define the Convention's reach. *Water Splash, Inc. v. Menon*, 137 S. Ct. 1504 (2017), held that the Convention permits service by mail if the receiving state has not objected and mail service is authorized under otherwise-applicable law. *Volkswagenwerk Aktiengesellschaft v. Schlunk*, 486 U.S. 694 (1988), held that the Convention applies only when documents must be transmitted abroad, so service on a German corporation's domestic subsidiary as its involuntary agent under state law did not implicate it. The Convention does not govern service in noncontracting states, and a voluntary waiver of service may not implicate it at all. In *Rio Properties, Inc. v. Rio International Interlink*, 284 F.3d 1007 (9th Cir. 2002), the court upheld court-ordered email service on a foreign internet business under Rule 4(f)(3), describing that provision as one means among several rather than an extraordinary last resort; later courts have divided over email and social-media service depending on the evidence that the account is likely to reach the defendant. For foreign states, *Republic of Sudan v. Harrison*, 139 S. Ct. 1048 (2019), held that the Foreign Sovereign Immunities Act's mail provision requires the packet to be addressed and dispatched to the foreign minister at the ministry in the foreign state, not to its embassy in the United States.

Territorial Reach: Rule 4(k)

Serving a summons or filing a waiver establishes personal jurisdiction over a defendant who is subject to the jurisdiction of a court of general jurisdiction in the state where the district court sits; over a party joined under Rule 14 or 19 and served within a judicial district of the United States not more than 100 miles from where the summons issued; and when a federal statute authorizes it. Rule 4(k)(2) adds jurisdiction over a defendant on a claim arising under federal law if the defendant is not subject to jurisdiction in any state's courts of general jurisdiction and exercising jurisdiction is consistent with the Constitution and laws of the United States. Rule 4(k) ties the service rules to the personal-jurisdiction analysis studied earlier: proper service is necessary, but a federal court ordinarily reaches only as far as the forum state's courts could.

Proof of Service and Sewer Service: Rule 4(l)

Unless service is waived, the server must file proof of service, by affidavit unless the server is a marshal or deputy marshal; failure to prove service does not affect the validity of service. This filing is traditionally called the return. In *Miedreich v. Lauenstein*, 232 U.S. 236 (1914), the Court upheld a mortgage-foreclosure judgment against a state resident who alleged that the sheriff had falsely returned service, treating the return as conclusive because state law allowed recovery against the sheriff on his bond. Today most jurisdictions treat the return as strong evidence of service rather than conclusive proof; a defendant's own denial generally will not overcome a private process server's affidavit, and the required standard of proof varies.

Sewer service is the practice of discarding the papers and filing a false affidavit of service, so that the defendant never learns of the suit and a default judgment follows. In *United States v. Brand Jewelers, Inc.*, 318 F. Supp. 1293 (S.D.N.Y. 1970), the court held that the United States had standing to enjoin a seller of consumer goods on easy credit from systematically obtaining default judgments through sewer service; the 1972 consent decree vacated defaults obtained from 1969 to 1971 and made the seller's attorney responsible for fair service. New York responded with a series of reforms: its 1970 amendment to CPLR 308(2), which allowed service by leaving papers with a person of suitable age and discretion at the defendant's workplace or home and mailing a second copy, without first showing diligent efforts at personal delivery, a requirement viewed as the main cause of sewer service; requirements in 1973 for detailed statements about how process was served; amendments after a 1986 investigation found that about 48,000 of 140,000 annual default judgments in New York City were tainted; the 2009 *Pfau v. Forster & Garbus* proceeding against debt-collection firms; and a New York City requirement that licensed process servers keep GPS records of service attempts.

Time Limit and Statutes of Limitations: Rule 4(m)

If a defendant is not served within 90 days after the complaint is filed, the court, on motion or on its own after notice to the plaintiff, must dismiss the action without prejudice as to that defendant or order service within a specified time. If the plaintiff shows good cause for the failure, the court must extend the time for an appropriate period. The Supreme Court has observed that the rule permits an extension even without good cause, *Henderson v. United States*, 517 U.S. 654 (1996), a point that matters most when the limitations period has run and a dismissal without prejudice would operate as a dismissal with prejudice. The 90-day limit does not apply to service in a foreign country under Rule 4(f), 4(h)(2), or 4(j)(1); the casebook notes that circuits divide over what time limit, if any, then applies.

Timing of service interacts with statutes of limitations. For a claim based on federal law, the action is commenced for limitations purposes when the complaint is filed under Rule 3, *West v. Conrail*, 481 U.S. 35 (1987). For a state-law claim in federal court, state law usually determines when the action is commenced,

Federal Rule 4 (continued)

Walker v. Armco Steel Corp., 446 U.S. 740 (1980), and in states that require service to commence an action, a defect in service can be fatal because the limitations period may expire before it is corrected. A challenge to untimely service is generally raised under Rule 12(b)(5).

Application

Confirm that the summons meets Rule 4(a) and was issued by the clerk. Decide whether to request a waiver, weighing the cost savings against the risk that the limitations period will run before the waiver is filed. Identify the defendant's category (individual in the United States, individual abroad, entity, government) and the methods available for that category, including methods borrowed from state law. Check who served, where, and on whom: for abode service, whether the place was the defendant's dwelling on that day and the recipient resided there; for agents, whether an actual appointment exists; for entities, whether the recipient's role supports service. Confirm service within 90 days, file proof of service, and consider whether Rule 4(k) and the Constitution support personal jurisdiction. A defendant raises defects in the summons under Rule 12(b)(4), defects in delivery under Rule 12(b)(5), and must do so in its first Rule 12 motion or responsive pleading.

National Equipment Rental, Ltd. v. Szukhent

Citation

National Equipment Rental, Ltd. v. Szukhent, 375 U.S. 311 (1964). Supreme Court of the United States, argued November 20, 1963, decided January 6, 1964. Justice Stewart wrote for a five-Justice majority. Justice Black dissented, and Justice Brennan, joined by Chief Justice Warren and Justice Goldberg, dissented separately. The case appears at casebook page 257 and concerns whether a person named in a printed lease to receive process for the lessees was "an agent authorized by appointment" under the Federal Rules. [Full judicial opinion](#).

Parties

National Equipment Rental, Ltd., a corporation with its principal place of business in New York, leased farm equipment to the respondents. It was the plaintiff in the district court and the petitioner in the Supreme Court. The Szukhents, Michigan farmers who had leased the equipment, were the defendants and respondents. Florence Weinberg, the person the lease designated to receive process for them in New York, was not a party. The lessor sought to sue the Szukhents in New York for unpaid rent; the Szukhents sought to quash service on the ground that Weinberg was not their agent.

Material Facts

In 1961 the Szukhents leased farm equipment from the petitioner on a printed form less than a page and a half long, containing eighteen numbered paragraphs. The last paragraph, printed just above the respondents' signatures in the same type as the rest of the form, provided that the agreement would be deemed made in Nassau County, New York, and governed by New York law, and that the lessee designated Florence Weinberg, of 47-21 Forty-first Street, Long Island City, New York, as agent for the purpose of accepting service of any process within New York. The Szukhents did not know Weinberg. The dissent later noted that she was chosen by the company, had never met the Szukhents, received nothing from them, undertook no obligation to them, and was revealed after the suit began to be the wife of one of the company's officers. 375 U.S. at 312-14; *id.* at 319 (Black, J., dissenting).

In 1962 the petitioner sued in federal district court in New York, alleging that the Szukhents had failed to make the periodic payments the lease required. A United States marshal delivered two copies of the summons and complaint to Weinberg. The same day she mailed them to the Szukhents with a letter stating that the documents had been served on her as their agent under the lease. The petitioner also notified the Szukhents by certified mail that process had been served on Weinberg. *Id.* at 313-14.

Procedural History

On the Szukhents' motion, the United States District Court for the Eastern District of New York quashed service. It reasoned that although Weinberg had promptly notified the Szukhents and sent them the papers, the lease did not explicitly require her to do so, so there was a "failure of the agency arrangement to achieve intrinsic and continuing reality." The Court of Appeals for the Second Circuit affirmed, 311 F.2d 79 (2d Cir.), and the Supreme Court granted certiorari. *Id.* at 314.

Issue

Was a person designated in a printed lease to receive process for the lessees, who was a stranger to them and whose appointment did not expressly require her to forward process, "an agent authorized by appointment" to receive service within Federal Rule 4(d)(1) (now Rule 4(e)(2)(C)), where she in fact promptly transmitted the summons and complaint to them?

Rule and Holding

Parties to a contract may agree in advance to submit to the jurisdiction of a given court, to permit notice to be served by the opposing party, or even to waive notice altogether. Under general principles of agency law, an appointed agent's prompt acceptance of process and transmittal of it to the principal validates the agency even without an explicit promise to transmit. Weinberg was therefore an agent authorized by appointment within the Rule, and service on her was valid. The Rule is a uniform federal standard, and even if state law were relevant, neither Michigan nor New York law requires an appointed agent to promise expressly to forward process. The Court limited its holding to a case in which prompt notice was actually given: a different case would be presented if Weinberg had not promptly notified the Szukhents. *Id.* at 315-18.

Judgment

The Supreme Court reversed the judgment of the Court of Appeals and remanded, leaving the Szukhents subject to suit in the Eastern District of New York.

Reasoning

The Court first set aside *Wuchter v. Pizzutti*, on which the Szukhents relied. *Wuchter* concerned the limits the Fourteenth Amendment places on a state statute that subjects nonresidents to its courts' jurisdiction by designating a public official to receive process. The question here was whether a party to a private contract may appoint an agent to receive service within the meaning of the Federal Rule, where the agent is not personally known to the party and has not expressly undertaken to transmit notice. *Id.* at 315.

The purpose of the clause was clear: the petitioner inserted it, and the Szukhents agreed to it, to ensure that any litigation under the lease would take place in New York. It was settled, as the lower courts had recognized, that contracting parties may agree in advance to submit to a court's jurisdiction, to permit notice to be served by the opposing party, or to waive notice altogether. The Court framed the only question before it as whether Weinberg was an agent authorized by appointment; no question of subject-matter jurisdiction or venue was presented. *Id.* at 312, 315-16.

On that question the Court applied general principles of agency law. Weinberg's prompt acceptance of the papers and her transmittal of them to the Szukhents, under the authority the lease conferred, was itself sufficient to validate the agency, even though she had not promised in advance to forward process. The Court emphasized that it was applying a Federal Rule governing federal courts in all fifty states. Even assuming that a uniform federal standard should give way to contrary state policy, no relevant state rule would invalidate the agency: Michigan's statute validating service under similar circumstances did not require an express undertaking to notify the principal, and New York law, which the lease selected, did not require one either. *Id.* at 316-17.

The Court rejected the argument that the agency was invalid because Weinberg had a conflict of interest, based on the facts that she did not know the Szukhents and might be related to an officer of the company. The argument ignored the narrow nature of the agency. Weinberg was appointed for the single purpose of receiving service, and both the lessor and the lessees had an equal interest in ensuring that, if litigation arose, the lessees received the adequate and timely notice that is a prerequisite to a valid judgment. A footnote added that there was no allegation that Weinberg had any pecuniary interest in the litigation. *Id.* at 317-18 & n.9.

The Court confined its holding. It held only that, prompt notice having been given, Weinberg was an agent authorized by appointment. If she had not promptly notified the Szukhents, a claim might well be made that

her failure had invalidated the agency, and the Court expressly did not reach a case in which the defendant received no personal notice. *Id.* at 315, 318.

Separate Opinions

Justice Black dissented. He stressed that the Szukhents had never dealt with, met, or heard of Weinberg, that she was handpicked by the company, and that only after suit was it revealed that she was the wife of one of its officers. He would have held that New York law governed and that, as the lower courts found, the appointment was invalid under it; alternatively, a federal definition of agency should exclude her; and upholding service raised serious due process questions. He predicted that such clauses would spread into the boilerplate of equipment leases and conditional sales contracts, giving large companies a green light to force individuals to defend in distant commercial centers or suffer default, and he called the notion that the Szukhents knowingly consented to suit in New York "a fiction—not even an amiable one." *Id.* at 318-33 (Black, J., dissenting).

Justice Brennan, joined by Chief Justice Warren and Justice Goldberg, dissented on the ground that federal standards should define an agent authorized by appointment and that those standards should impose three requirements. The Rule should deny validity to the appointment of an agent whose interests conflict with those of the supposed principal. The appointment should include an explicit condition that the agent transmit process to the principal forthwith, drawing on *Wuchter's* reasoning. And because the corporate plaintiff prepared the printed form, an individual purchaser should not be bound by the appointment without proof, beyond a signature, that he understandingly consented to be sued in a state other than his residence. *Id.* at 333-34 (Brennan, J., dissenting).

Notes

The majority resolved the case under the Federal Rule and general agency law, and it did not decide any due process question. The casebook asks why the Court looked to agency principles rather than the Due Process Clause and whether the Constitution has any role when a party contractually waives service. The limit stated in the opinion is central to the holding: service was upheld because prompt notice was actually given, which gives the Szukhents the same practical notice *Mullane* requires. The opinion leaves open whether a contractual appointment of an agent who never forwards the papers would support a judgment.

Justice Black's objection concerns consent more than notice. Weinberg's prompt mailing gave the Szukhents actual notice; the burden he identified was the cost of defending far from home under a clause buried in a printed form. The same question returns in the enforcement of forum-selection clauses in consumer form contracts and, as the casebook's second note asks, in "shrinkwrap," "clickwrap," and "browsewrap" agreements assented to with a click or a tap. The Contracts materials on rolling contracts in *Hill v. Gateway 2000* address the parallel question of when a consumer is bound by terms that appear only in a standard form.

Wyman v. Newhouse

Citation

Wyman v. Newhouse, 93 F.2d 313 (2d Cir. 1937), *cert. denied*, 303 U.S. 664 (1938). United States Court of Appeals for the Second Circuit, decided December 6, 1937. Judge Manton wrote the opinion for a panel that included Judges Learned Hand and Swan. The case appears at casebook page 276 under the heading "Etiquette of Service" and concerns whether a judgment based on service obtained by luring the defendant into the forum through fraud may be enforced in another state. [Full judicial opinion](#).

Parties

Wyman, the appellant, had obtained a default judgment against Newhouse in a Florida state court and sued in federal court in New York to enforce it. Newhouse, the appellee, was a New York resident who had never lived in Florida. Wyman sought enforcement of the Florida judgment; Newhouse contended that the Florida court never acquired jurisdiction over him because he was tricked into entering Florida to be served.

Material Facts

Wyman and Newhouse were both married during their relationship, and Wyman's husband died before the suit. The two had known each other for some years and had engaged in what the court called meretricious relations, meaning a sexual relationship outside marriage. Newhouse's affidavits established the following facts, and Wyman did not deny making the representations they described. On October 25, 1935, while Newhouse was in Salt Lake City, Utah, he received a telegram from Wyman: "Account illness home planning leaving. Please come on way back. Must see you." When he returned to New York, he received a letter stating that her mother was dying in Ireland, that she was leaving the United States for good to go to her mother, and that she could not go without seeing him once more and discussing her affairs. They then spoke by telephone, and she repeated the substance of the letter in a hysterical and distressed voice. He promised to come to Florida in a week or ten days. Before he left, she wrote him a letter expressing love and affection and her delight at his coming, and they exchanged telegrams arranging accommodations in Miami, one reaching him in Washington, D.C., en route. *93 F.2d at 314*.

Newhouse arrived at the Miami airport at six in the morning. He saw Wyman standing with her sister about 75 feet away, and a deputy sheriff, after identifying him, served him with process in a suit for \$500,000 for money loaned, money advanced, and seduction under promise of marriage. A photographer tried to take his picture. A stranger then offered to take him to the home of a lawyer who knew Wyman's attorney; the lawyer invited him to his office, where Newhouse found one of Wyman's lawyers waiting. Newhouse did not retain the Florida lawyer. He flew back to New York that evening, and his New York counsel advised him to ignore the Florida summons. He did so, and a default judgment was entered after a jury assessed damages. *Id.*

Procedural History

Wyman sued Newhouse on the Florida judgment in federal district court in New York. Newhouse moved to dismiss the complaint before trial under Rule 113 of the New York Rules of Civil Practice, and the motion was decided on affidavits. The Federal Rules of Civil Procedure had not yet taken effect, and federal courts in actions at law followed state procedure under the Conformity Act. The district court granted the motion and dismissed the complaint. Wyman appealed, and after the Second Circuit affirmed, the Supreme Court denied certiorari. *Id. at 313-14*.

Issue

Must a New York court give effect to a Florida default judgment when the Florida court obtained personal jurisdiction by serving a defendant whom the plaintiff fraudulently induced to enter Florida? May the defendant raise the fraud as a defense to enforcement in New York without having challenged service or defended on the merits in Florida?

Rule and Holding

Fraud that induces a defendant to come within a court's territorial jurisdiction so that he may be served defeats the court's jurisdiction over his person. A fraud affecting jurisdiction is equivalent to a lack of jurisdiction, so a judgment procured in that way is void and is not binding when the plaintiff tries to enforce it in another state. The defendant need not attack the judgment in the rendering state or defend on the merits there; he may raise the fraud as an equitable defense when sued on the judgment, and the enforcing court may consider the jurisdictional question collaterally. *Id.* at 315.

Judgment

The Second Circuit affirmed the dismissal of the complaint, so the Florida judgment could not be enforced against Newhouse in New York.

Reasoning

The court first found the facts established. The affidavits and the reasonable inferences from them convincingly showed that Newhouse was induced to enter Florida by fraud: Wyman falsely represented her mother's illness, her intention to leave the United States, and her love and affection for him, when her sole purpose was to bring him within Florida's jurisdiction so that he could be served in an action for damages. The timing of the service, the presence of a deputy sheriff and a photographer at the airport, and the waiting lawyers supported that conclusion, and Wyman did not deny making the representations. *Id.* at 314.

Service of process on a person physically present in a state ordinarily confers personal jurisdiction, the rule of *Pennoyer v. Neff*. The court treated fraud as an exception to that rule. Newhouse's presence in Florida was the product of Wyman's deception, and a fraud affecting jurisdiction is the equivalent of a lack of jurisdiction. A judgment procured by that kind of fraud lacks jurisdiction and is null and void. *Id.* at 315.

Full faith and credit did not require a different result. The Constitution's Full Faith and Credit Clause, Article IV, § 1, and its implementing statute (then 28 U.S.C. § 687, now § 1738) require each state to give sister-state judgments the effect they have where rendered, but a judgment rendered without jurisdiction over the defendant is not entitled to that effect. A judgment recovered in a sister state through the fraud of the party procuring the appearance of another is not binding on the latter when enforcement is sought in another state. *Id.*

Newhouse was not required to go back to Florida. He had no obligation to proceed against the judgment there, and his equitable defense in answer to the suit on the judgment was sufficient. Nor did he have to make out a defense on the merits in Florida, because an error in entering judgment against a party over whom the court had no jurisdiction permits the jurisdictional question to be raised collaterally, that is, in a later proceeding brought to enforce the judgment. The complaint was therefore properly dismissed. *Id.*

Separate Opinions

The panel was unanimous. The reported decision contains no concurrence or dissent.

Notes

The casebook pairs *Wyman* with *Tickle v. Barton*, 95 S.E.2d 427 (W. Va. 1956). There the plaintiff's attorney, concealing his identity and purpose, telephoned a Virginia defendant and invited him to a high school football banquet in West Virginia, where a deputy sheriff served him. The Supreme Court of Appeals of West Virginia held that service procured by fraud, trickery, or artifice does not give a court jurisdiction over the person served, and it held sufficient the defendant's plea in abatement raising that defense. The cases differ in posture. Barton challenged service directly in the forum. Newhouse defaulted and waited to attack the judgment when Wyman tried to enforce it, a strategy that preserved his objection but would have left him with no defense on the merits if the New York court had rejected his fraud claim. The deception in *Wyman* also exploited a personal relationship and a fabricated family emergency, and its facts were effectively uncontested.

The casebook asks whether the result would change if Newhouse had been in Florida and the trickery had been used only to flush him out of hiding. Courts generally distinguish trickery that brings a defendant into the jurisdiction, which manufactures the basis for jurisdiction, from trickery that induces a defendant already present to come forward to be served, which only overcomes evasion; the second is usually tolerated. Long-arm statutes and service outside the forum now make luring defendants less necessary. *Burnham v. Superior Court* upheld jurisdiction based on in-state service on a defendant voluntarily present in the forum; the *Wyman* and *Tickle* rule addresses presence that the plaintiff obtained by deception. The section of the casebook containing *Wyman* also includes related limits on service within the forum, such as immunity for nonresidents attending court proceedings and the United Nations Headquarters Agreement immunity considered in *Kadic v. Karadzic*, 70 F.3d 232 (2d Cir. 1995), where the court held that Karadzic was not immune when served in New York outside the Headquarters District.

Federal Rule 12: Defenses, Objections, and Timing

Sources

Federal Rule of Civil Procedure 12 (as amended effective December 1, 2024), read with Rules 4(d) and 7(a). Rule 12 sets the time to respond to a complaint, lists the defenses a defendant may raise by motion, and determines which defenses are lost if not raised promptly. The syllabus pairs it with Rule 4 because Rule 12(b)(4) and (5) are the vehicles for challenging defective process and service, and because the casebook's note on *Roller v. Holly* asks how much time a defendant has to respond. [Rule 12](#).

Time to Respond: Rule 12(a)

A defendant must serve an answer within 21 days after being served with the summons and complaint. If the defendant timely waived service under Rule 4(d), the answer is due 60 days after the request for waiver was sent, or 90 days if it was sent to the defendant outside any judicial district of the United States. A party must answer a counterclaim or crossclaim within 21 days after service, and a reply ordered by the court within 21 days after service of the order unless the order specifies otherwise. The United States, its agencies, and its officers and employees sued in their official capacities have 60 days after service on the United States attorney; officers and employees sued individually for acts connected with federal duties have 60 days after service on the officer or the United States attorney, whichever is later. The 2024 amendment made clear that a different time set by a federal statute controls.

Serving a Rule 12 motion alters these periods. If the court denies the motion or postpones deciding it until trial, the responsive pleading is due 14 days after notice of the court's action; if the court grants a motion for a more definite statement, it is due 14 days after that statement is served. A defendant who files a Rule 12 motion therefore does not also have to answer until the motion is resolved.

The Seven Defenses: Rule 12(b)

Every defense must be asserted in the responsive pleading if one is required, but a party may raise seven defenses by motion: (1) lack of subject-matter jurisdiction, meaning the court's authority over the type of case; (2) lack of personal jurisdiction, meaning the court's power over the defendant; (3) improper venue, meaning the wrong district; (4) insufficient process, a defect in the summons itself, such as a missing seal or signature, the wrong defendant's name, or a wrong response time; (5) insufficient service of process, a defect in how or when the summons was delivered, such as leaving papers with someone who does not reside at the defendant's abode or serving after the Rule 4(m) period; (6) failure to state a claim upon which relief can be granted; and (7) failure to join a party required under Rule 19. A motion asserting any of these defenses must be made before pleading if a responsive pleading is allowed.

No defense or objection is waived by joining it with other defenses or objections in a responsive pleading or motion. That sentence abolished the special appearance in federal court. Under older practice, reflected in Mullane's special appearance before the Surrogate, a defendant who wanted to contest jurisdiction had to appear solely for that purpose, and raising any other matter could be treated as a general appearance that consented to jurisdiction. Under Rule 12, a defendant may combine jurisdictional objections with defenses on the merits in the same filing.

Other Rule 12 Motions

After the pleadings are closed, but early enough not to delay trial, a party may move for judgment on the pleadings under Rule 12(c). If, on a Rule 12(b)(6) or 12(c) motion, the court considers matters outside the pleadings, Rule 12(d) requires it to treat the motion as one for summary judgment under Rule 56 and give all parties a reasonable opportunity to present pertinent material. Rule 12(e) permits a motion for a more definite statement when a pleading is so vague or ambiguous that the party cannot reasonably prepare a response; the motion must be made before responding and must point out the defects. Rule 12(f) permits the court to strike an insufficient defense or any redundant, immaterial, impertinent, or scandalous matter. Under Rule 12(i), on a party's motion, any Rule 12(b) defense and any Rule 12(c) motion must be heard and decided before trial unless the court defers it.

Consolidation and Waiver: Rules 12(g) and 12(h)

A Rule 12 motion may be joined with any other motion allowed by the rule. Once a party makes a Rule 12 motion, it may not make another motion under the rule raising a defense or objection that was available but omitted, except as Rule 12(h)(2) and (3) allow.

The defenses listed in Rule 12(b)(2) through (5), covering personal jurisdiction, venue, process, and service, are waived if omitted from a Rule 12 motion when they were available, or if they are neither made by motion nor included in the responsive pleading or an amendment allowed as a matter of course under Rule 15(a)(1). A defendant who moves only under Rule 12(b)(6) therefore forfeits objections to personal jurisdiction, venue, process, and service. The defenses of failure to state a claim, failure to join a required party, and failure to state a legal defense to a claim are preserved longer: they may be raised in any pleading allowed under Rule 7(a), by a Rule 12(c) motion, or at trial. Lack of subject-matter jurisdiction is never waived; if the court determines at any time that it lacks subject-matter jurisdiction, it must dismiss the action.

Appearing, Defaulting, and Collateral Attack

A defendant who believes the court lacks personal jurisdiction or that service was defective has two broad options. It may appear and raise the objection under Rule 12, in which case the court's ruling on jurisdiction binds it and cannot be relitigated when the judgment is later enforced, *Baldwin v. Iowa State Traveling Men's Ass'n*, 283 U.S. 522 (1931). Or it may stay away, suffer a default judgment, and challenge jurisdiction when the plaintiff seeks to enforce the judgment, as Newhouse did in *Wyman*. The second course preserves the jurisdictional objection but forfeits any defense on the merits if the jurisdictional challenge fails. Separately, waiving service under Rule 4(d) does not waive objections to personal jurisdiction or venue, which remain subject to Rule 12(h)(1).

Application

Calculate the response deadline from the date of service or, if service was waived, from the date the waiver request was sent. Before filing anything, list every available Rule 12(b) defense. Personal jurisdiction, venue, process, and service objections must appear in the first Rule 12 motion, or in the answer if no motion is made, or they are lost. Distinguish a defect in the summons (Rule 12(b)(4)) from a defect in delivery or timing (Rule 12(b)(5)). Consider whether matters outside the pleadings will convert a Rule 12(b)(6) motion into a summary-judgment motion. Remember that subject-matter jurisdiction can be raised at any time, and that failure to state a claim can be raised through trial.

Opportunity to Be Heard: Casebook pp. 278-296

Sources

Casebook Chapter 3, Part D, pp. 278-296, assigned to be read with care although it will not be covered by case presentation. The section applies *Mullane's* statement that due process requires notice and an opportunity for hearing appropriate to the nature of the case. The Court's decisions since the 1960s fall into two groups: challenges to private creditors' use of provisional remedies (*Sniadach*, *Fuentes*, *Mitchell*, *North Georgia Finishing*, and *Doehr*), and claims to a hearing before the government withdraws a benefit (*Goldberg* and *Mathews*). *Sniadach*, *Fuentes*, and *Doehr* are briefed separately.

Provisional Remedies

A provisional remedy is a court order, obtained at the start of a suit or while it is pending, that seizes or encumbers the defendant's property for the plaintiff's benefit before any judgment. Attachment seizes or places a lien on the defendant's property to secure satisfaction of a possible judgment. Garnishment is attachment of property that a third party, called the garnishee, holds for the defendant, such as wages owed by an employer or funds in a bank. Replevin is an action to recover possession of specific personal property, and a prejudgment writ of replevin lets the plaintiff take the property before trial. Sequestration, as used in Louisiana, is a court order holding property in the court's custody during the suit. These remedies derive from common-law writs and are now statutory; they were traditionally treated as exceptions to the requirement of prior notice and hearing.

The Prejudgment Remedy Cases

Sniadach v. Family Finance Corp. (1969) struck down Wisconsin's prejudgment wage garnishment, which froze wages on a summons issued at the creditor's lawyer's request with no opportunity for a hearing before trial. Justice Harlan's concurrence framed the requirement as notice and a hearing aimed at establishing the validity, or at least the probable validity, of the claim before the deprivation. The decision left open whether its rationale reached property other than wages and what extraordinary situations could justify seizure without a prior hearing.

Fuentes v. Shevin (1972) answered broadly. By a vote of four to three, it invalidated Florida and Pennsylvania statutes that allowed a creditor to obtain a writ of replevin for household goods on a conclusory application and a bond, with no prior hearing. Temporary deprivations count, a buyer's possessory interest in goods bought on installment is property, the goods need not be necessities, and seizure without a hearing is permissible only in truly unusual situations involving an important public interest, a special need for prompt action, and a government official's decision under a narrowly drawn statute.

Mitchell v. W.T. Grant Co., 416 U.S. 600 (1974), upheld a Louisiana sequestration statute allowing ex parte seizure (seizure on one party's application without notice to the other) where the applicant claimed a possessory interest and the defendant could conceal, waste, remove, or dispose of the property. The suit concerned an overdue installment balance, and the Court emphasized the vendor's interest in preventing waste of the property, the court's involvement in authorizing the writ, the suitability of the dispute for documentary proof, and the immediate availability of a post-seizure hearing. *North Georgia Finishing, Inc. v. Di-Chem, Inc.*, 419 U.S. 601 (1975), then invalidated a Georgia garnishment statute because the writ issued on conclusory allegations without an early hearing or other safeguard against mistaken repossession.

Connecticut v. Doehr (1991) invalidated, as applied, a statute allowing prejudgment attachment of a home on a tort plaintiff's affidavit, without prior notice or hearing, extraordinary circumstances, or a bond. It adapted

the *Mathews* factors to disputes between private parties, giving principal weight to the interest of the party seeking the remedy.

Factors the Cases Used

The casebook observes that the cases never stated an overall test and identifies the factors they used. The first factor is who decides: a judge or a clerk. The second is what interest the applicant has: whether it has a pre-existing interest in the property. The third is when the hearing occurs: before the seizure or immediately afterward. The fourth is why the seizure is sought: to establish jurisdiction or to provide security, and, if for security, whether exceptional circumstances such as a risk of destruction of the asset exist. The fifth is how the applicant must proceed: whether it must show probable cause or meet a lesser standard, whether its allegations must be sworn and based on personal knowledge, and whether the dispute can be resolved by uncontested documents. The casebook also asks whether the *Sniadach* line should apply when attachment is used to obtain jurisdiction, as in *Shaffer*.

Government Benefits and the Mathews Test

Until the mid-twentieth century, government benefits such as welfare payments, civil service jobs, and licenses were not treated as property protected by due process. Their inclusion, associated with Charles Reich's article *The New Property*, was a major constitutional development. In *Goldberg v. Kelly*, 397 U.S. 254 (1970), the Court held that a welfare recipient is entitled to an evidentiary hearing before benefits are terminated, because termination pending resolution of a dispute may deprive an eligible recipient of the very means by which to live while waiting; the hearing need not be a full trial but must be tailored to the capacities and circumstances of those to be heard.

In *Mathews v. Eldridge*, 424 U.S. 319 (1976), the Court held that a pretermination hearing was not required before Social Security disability benefits were cut off, and it stated a three-factor balancing test: first, the private interest affected by the official action; second, the risk of an erroneous deprivation through the procedures used and the probable value of additional or substitute safeguards; and third, the government's interest, including the function involved and the fiscal and administrative burdens that additional procedures would entail. The casebook asks whether applying *Mathews* would have changed the outcome in *Fuentes* and how the *Sniadach* factors fit the *Mathews* framework; *Doehr* supplies the Court's own answer for prejudgment remedies.

Limits and Later Applications

Due process hearing rights attach to adjudicative action, not legislation. In *Jones v. Governor of Florida*, 975 F.3d 1016 (11th Cir. 2020) (en banc), the court reversed an injunction against Florida's requirement that people with felony convictions pay outstanding fines, fees, and restitution before voting. Relying on *Bi-Metallic Investment Co. v. State Board of Equalization*, the majority held that the deprivation occurred through legislative action, meaning a general law applying prospectively to more than a few people, so the affected persons were entitled to no process beyond the legislative process and *Mathews* did not apply. A dissent argued, through an example about unpaid traffic citations, that denying people the information needed to comply with a general law could not be constitutionally permissible.

Other notes show the factors at work. *Shaumyan v. O'Neill*, 987 F.2d 122 (2d Cir. 1993), upheld the same Connecticut attachment statute as applied to a contractor seeking payment for repairs, because the dispute turned largely on written documentation and the contractor had a substantial pre-existing interest in the home once its labor and materials were incorporated. *Diaz v. Paterson*, 547 F.3d 88 (2d Cir. 2008), upheld New

Opportunity to be heard (continued)

York's lis pendens statute, which lets a plaintiff claiming an interest in real property record a notice of the pending suit, applying the *Mathews* factors as construed in *Doehr. Bennis v. Michigan*, 516 U.S. 442 (1996), rejected a wife's due process challenge to forfeiture of a jointly owned car used by her husband in a crime, relying on a long line of cases permitting forfeiture of an innocent owner's interest. *Nelson v. Colorado*, 137 S. Ct. 1249 (2017), held under *Mathews* that Colorado could not require defendants whose convictions were invalidated to prove innocence by clear and convincing evidence to recover fees, costs, and restitution they had paid.

The final note addresses counsel. In *Lassiter v. Department of Social Services*, 452 U.S. 18 (1981), the Court recognized a presumption that an indigent litigant has a right to appointed counsel only when loss of physical liberty is at stake and held that due process did not require counsel before termination of a mother's parental rights on the facts presented. In *Turner v. Rogers*, 564 U.S. 431 (2011), the Court held that due process does not automatically require counsel for an indigent parent facing civil contempt incarceration for nonpayment of child support, where the opposing parent is unrepresented and the State provides alternative safeguards, but it found those safeguards missing and held that the incarceration violated due process.

Application

First decide whether there is a deprivation of property or liberty by state action through an adjudicative process; *Jones* shows that legislative action falls outside the hearing requirement. For a prejudgment remedy between private parties, apply *Doehr's* version of *Mathews*: weigh the defendant's property interest, including partial and temporary impairments; the risk of error given who decides, what showing is required, and whether the dispute is documentary or fact-intensive; the value of safeguards such as a prior hearing, an immediate post-deprivation hearing, or a bond; and the plaintiff's interest, especially any pre-existing interest in the property or evidence that the defendant will dissipate it. For a government benefit, apply the three *Mathews* factors directly. In either setting, extraordinary circumstances may justify postponing the hearing, but a hearing must follow promptly.

Sniadach v. Family Finance Corp. of Bay View

Citation

Sniadach v. Family Finance Corp. of Bay View, 395 U.S. 337 (1969). Supreme Court of the United States, argued April 21, 1969, decided June 9, 1969. Justice Douglas wrote for the Court, Justice Harlan concurred, and Justice Black dissented. The casebook presents the case in Note 1 at page 279; the brief draws on the full opinion. [Full judicial opinion](#).

Parties

Christine Sniadach, a wage earner, was the defendant in the garnishment action and the petitioner in the Supreme Court. Family Finance Corporation of Bay View, the creditor, was the plaintiff and a respondent. Her employer, Miller Harris Instrument Co., was named as garnishee, the third party holding money owed to the debtor. The creditor sought to freeze part of Sniadach's wages pending trial of its claim; Sniadach sought dismissal of the garnishment as a violation of due process.

Material Facts

Family Finance began a garnishment action naming Sniadach as defendant and Miller Harris as garnishee. The complaint alleged a claim of \$420 on a promissory note. The employer answered that it held \$63.18 in wages earned by Sniadach and not yet paid, and that it would pay half to her as a subsistence allowance and hold the other half, \$31.59, subject to the court's order. 395 U.S. at 338.

Under Wisconsin's procedure, the clerk of court issued the garnishment summons at the request of the creditor's lawyer. Service on the garnishee froze the wages, and the creditor then had ten days to serve the summons and complaint on the debtor. The wages remained frozen until the main suit was tried, and the debtor could unfreeze them only by winning on the merits. The debtor had no opportunity to be heard before the wages were frozen. *Id.* at 338-39.

Procedural History

Sniadach moved to dismiss the garnishment proceedings on the ground that the procedure violated the Due Process Clause of the Fourteenth Amendment because it provided no notice or hearing before the wages were taken. The Wisconsin courts rejected the challenge, and the Wisconsin Supreme Court sustained the procedure, 37 Wis. 2d 163, 154 N.W.2d 259 (1967). The Supreme Court granted certiorari. *Id.* at 338.

Issue

Does a state procedure that permits a creditor to freeze a debtor's wages through garnishment before trial, without notice to the debtor or an opportunity to be heard, violate the Due Process Clause?

Rule and Holding

Yes. Wages are a specialized type of property presenting distinct problems in the economic system, and prejudgment garnishment of the Wisconsin type is a taking that may impose tremendous hardship on wage earners with families to support. Summary procedures may satisfy due process in extraordinary situations, but Wisconsin's statute was not narrowly drawn to meet any such situation, and none was present. Absent notice and a prior hearing, the procedure violated the fundamental principles of due process. *Id.* at 339-42.

Judgment

The Supreme Court reversed the judgment of the Wisconsin Supreme Court.

Reasoning

The Court acknowledged that Sniadach would eventually receive a hearing on the merits of the creditor's claim. In the meantime, however, she lost the use of wages she had already earned without any opportunity to be heard or to present any defense. Summary seizure had been upheld in extraordinary situations, such as the protection of the public from bank failures and misbranded drugs, and in cases involving attachment of a nonresident's property, but no situation requiring special protection of a state or creditor interest appeared here. Sniadach lived in the Wisconsin community, so personal jurisdiction over her was readily obtainable. *Id.* at 339.

The Court then explained why wages deserve particular protection. Relying on congressional testimony gathered for the Consumer Credit Protection Act of 1968, it noted that until that recent act of Congress, which forbids discharging employees because their wages have been garnished for one debt, garnishment often cost the debtor a job, and it always drained family income. The creditor's leverage was enormous: the creditor could demand not only the original debt but also the collection fees its attorneys incurred in the garnishment. The Court also quoted congressional testimony that in a vast number of cases the debt was fraudulent, saddled on a poor and ignorant person trapped in an easy-credit nightmare. Prejudgment garnishment of this kind could, as a practical matter, drive a wage-earning family to the wall. Where the taking of property is so obvious, the Court concluded, little argument is needed to show that the procedure violates due process absent notice and a prior hearing. *Id.* at 340-42.

Separate Opinions

Justice Harlan concurred. He responded to the argument that a temporary freeze does not deprive anyone of property: the property taken was the use of the garnished wages during the period between garnishment and the end of the main suit, and that deprivation was not de minimis. Apart from special situations, he wrote, due process is afforded only by the kinds of notice and hearing aimed at establishing the validity, or at least the probable validity, of the underlying claim before the debtor can be deprived of his property or its unrestricted use. *Id.* at 342-44 (*Harlan, J., concurring*).

Justice Black dissented. He accused the majority of invalidating a state law because it found the law unwise and of using a vague fundamental-fairness standard derived from natural law rather than the Constitution's text. In his view Wisconsin's procedure, which ultimately gave the debtor notice and a hearing, was consistent with the Court's earlier decisions upholding prejudgment attachment, such as *McKay v. McInnes* and *Ownbey v. Morgan*, and the policy choice belonged to the legislature. *Id.* at 344-51 (*Black, J., dissenting*).

Notes

The opinion's emphasis on wages and family hardship left two questions open, as the casebook notes: whether the rationale reached prejudgment seizures of other property when the hardship was less severe, and what extraordinary situations justify seizure without a prior hearing. *Fuentes* answered the first question broadly for household goods, and *Doehr* extended protection to real estate the owner continued to occupy.

Sniadach addressed prejudgment garnishment only. Garnishment after judgment, once the creditor's claim has been adjudicated, remains available, subject to the federal limits Title III of the Consumer Credit Protection Act places on the portion of disposable earnings that may be garnished. The opinion's reference to readily available personal jurisdiction also connects to the casebook's question whether the *Sniadach* line should apply when attachment is used to obtain jurisdiction over a nonresident.

Fuentes v. Shevin

Citation

Fuentes v. Shevin, 407 U.S. 67 (1972), *reh'g denied*, 409 U.S. 902 (1972). Supreme Court of the United States, argued November 9, 1971, decided June 12, 1972, together with *Parham v. Cortese*. Justice Stewart wrote for a four-Justice majority joined by Justices Douglas, Brennan, and Marshall. Justice White dissented, joined by Chief Justice Burger and Justice Blackmun. Justices Powell and Rehnquist, who joined the Court after argument, took no part. The casebook presents the case in Note 2 at page 280. [Full judicial opinion](#).

Parties

Margarita Fuentes, a Florida consumer whose household goods were seized, was the appellant; Robert Shevin, Florida's Attorney General, defended the Florida statute, and Firestone Tire and Rubber Company, the seller, was also an appellee. In the companion Pennsylvania case, consumers whose goods had been seized under Pennsylvania's replevin statute challenged it against state officials and the creditors. The consumers sought declarations that the statutes were unconstitutional and injunctions against their enforcement.

Material Facts

Fuentes bought a gas stove and a service policy from Firestone under a conditional sales contract, and later a stereophonic phonograph on the same terms. The total cost was about \$500 plus a financing charge of more than \$100. Firestone retained title, but Fuentes was entitled to possession unless she defaulted. She made installment payments for more than a year. With about \$200 remaining, a dispute arose over the servicing of the stove. Firestone sued in small-claims court for repossession of the stove and stereo, claiming she had refused to make her remaining payments. At the same time, and before Fuentes had received the summons, Firestone obtained a writ of replevin, and a deputy sheriff and a Firestone agent seized the goods from her home. *407 U.S. at 70-71*.

Florida's statute allowed a writ to issue on the applicant's complaint and bond alone. The applicant had to allege, in conclusory fashion, that it was lawfully entitled to possession and post a bond for double the value of the property. The clerk issued the writ, which commanded the officer to seize the goods and to summon the defendant to answer; if the goods were in a dwelling and not surrendered, the officer could break the building open. The officer held the goods for three days, during which the defendant could reclaim them by posting its own bond for double their value; otherwise they went to the applicant pending final judgment. Pennsylvania's statute was more summary: the applicant needed only to file an affidavit of the value of the property and a bond, did not have to file any suit, and the person whose goods were seized had to sue to obtain a hearing. *Id. at 73-78*.

The Pennsylvania appellants included buyers of household goods under installment contracts whose sellers obtained writs by claiming default, and Rosa Washington, whose former husband, a local deputy sheriff, obtained a writ to seize their son's clothes, furniture, and toys during a custody dispute. *Id. at 71-72*.

Procedural History

Fuentes sued in federal district court, challenging Florida's prejudgment replevin procedures under the Due Process Clause. The Pennsylvania appellants brought a similar suit. In each case a three-judge district court, a special panel then required for suits seeking to enjoin state statutes on constitutional grounds, upheld the statute: *Fuentes v. Faircloth*, 317 F. Supp. 954 (S.D. Fla. 1970), and *Epps v. Cortese*, 326 F. Supp. 127 (E.D. Pa. 1971). The consumers appealed directly to the Supreme Court. *Id. at 71-72*.

Issue

Do statutes that allow a private party to obtain a writ of replevin and have state officers seize goods from another person's possession, on an ex parte application and a bond, without notice or an opportunity for a hearing before the seizure, violate the Due Process Clause of the Fourteenth Amendment?

Rule and Holding

Yes. The Florida and Pennsylvania statutes are unconstitutional insofar as they deny the right to an opportunity to be heard before chattels are taken from their possessor. To serve its purpose, the hearing must come at a time when the deprivation can still be prevented. A temporary, nonfinal deprivation is a deprivation; a buyer's possessory interest in goods purchased under a conditional sales contract is property even though the seller retains title; and due process protects property generally, not only necessities. Seizure without a prior hearing is permitted only in extraordinary situations, which were absent where only private gain was at stake. The printed contract clauses permitting the seller to retake the goods did not waive the right to a prior hearing. *Id. at 80-96.*

Judgment

The Supreme Court vacated the judgments of both three-judge district courts and remanded for further proceedings consistent with its opinion.

Reasoning

The Court first described the procedure's practical effect. At the moment the defendant receives the complaint seeking repossession, the property has already been seized, without prior notice or any chance to challenge the writ. The defendant will eventually have a hearing as defendant in the repossession action and can recover the goods in the meantime only by posting a bond for double their value. The process also lacked judicial supervision: private parties, serving their own advantage, could unilaterally invoke state power to take goods from another, with no state official deciding whether to issue the writ, reviewing the basis of the claim, or evaluating the need for immediate seizure. The State, the Court wrote, acted largely in the dark. *Id. at 73-75, 93.*

The purpose of the right to be heard is to protect a person's use and possession of property from arbitrary encroachment and to minimize substantively unfair or mistaken deprivations, a danger that is especially great when the State seizes goods simply on a private party's application. That purpose is served only if the hearing comes when the deprivation can still be prevented. A later hearing can return the goods and may award damages, but it cannot undo the fact that an arbitrary taking has occurred. The Florida and Pennsylvania safeguards, a bond, a conclusory allegation, and exposure to damages, tested no more than the strength of the applicant's own belief in its rights, and a bond's minimal deterrent effect was no substitute for an informed evaluation by a neutral official. *Id. at 80-84.*

The Court rejected three arguments for limiting the right. First, the opportunity to post a counterbond within three days did not make the seizure a non-deprivation, because a temporary, nonfinal deprivation of property is a deprivation under the Fourteenth Amendment. Second, although the sellers retained title, the buyers had a possessory interest in the goods, dearly bought through installment payments and protected by contract, and that interest was property. Third, the Court refused to confine due process to necessities such as wages; the Fourteenth Amendment speaks of property generally, and courts should not decide which consumer goods are important enough to protect. *Id. at 84-90.*

Extraordinary situations can justify seizure without a prior hearing, but they must be truly unusual. In the cases allowing it, the seizure was directly necessary to secure an important governmental or general public interest; there was a special need for very prompt action; and the State kept strict control over its monopoly of legitimate force, with a government official deciding under a narrowly drawn statute that the seizure was necessary in the particular case. Examples included tax collection, war needs, bank failures, and misbranded drugs and contaminated food. No such interest justified seizing household goods when no more than private gain was directly at stake. *Id.* at 90-93.

Finally, the consumers had not waived their rights. The contracts provided that on default the seller "may take back," "may retake," or "may repossess" the goods, but they said nothing about waiving a prior hearing or about the process, whether final judgment, self-help, or prejudgment replevin with or without a hearing, by which repossession would occur. A waiver of constitutional rights must, at the least, be clear. The Court contrasted *D.H. Overmyer Co. v. Frick Co.*, which upheld a cognovit note negotiated between corporations with the advice of counsel; here there was no bargaining over terms, and the parties were far from equal in bargaining power. *Id.* at 94-96.

The Court stressed the limits of its holding. It did not decide the form of the required hearing, which may vary and is a subject for legislation, and it did not question the power of a state to seize goods before final judgment; it held only that the seizure must follow a hearing that tests at least the probable validity of the underlying claim. *Id.* at 96-97.

Separate Opinions

Justice White, joined by Chief Justice Burger and Justice Blackmun, dissented. He emphasized that the creditor also has a property interest in goods bought on installment, including a security interest that can be impaired if the goods are hidden, damaged, or depreciate while the debtor, who has stopped paying, keeps them. Sellers have strong economic reasons not to repossess without a real default, and in most cases the default is undisputed, so a prior hearing would add cost and delay with little benefit. He would have deferred to the legislative judgments reflected in state law and in the Uniform Commercial Code's rules on secured transactions. He also predicted that creditors could avoid the decision by stating in their credit instruments that they may retake possession without a hearing, so that the result would have little impact and represented "no more than ideological tinkering with state law." *Id.* at 97-103 (*White, J., dissenting*).

Notes

Fuentes was the high point of the prior-hearing requirement, and the four-to-three vote with two Justices absent made it vulnerable. Two years later, after Justices Powell and Rehnquist had joined the Court, *Mitchell v. W.T. Grant Co.* upheld Louisiana's sequestration procedure, stressing judicial supervision, sworn and specific allegations, the creditor's vendor's lien, a bond, and an immediate post-seizure hearing. Justice Stewart's dissent in *Mitchell* argued that the decision effectively overruled *Fuentes*. *Doehr* reconciled the line through a *Mathews*-style balance in which a prior hearing is the default and the plaintiff's pre-existing interest, exigency, and procedural safeguards can justify postponing it.

Two further limits matter. *Fuentes* concerns seizures carried out by state officers under state procedures; private self-help repossession under Article 9 of the Uniform Commercial Code, when conducted without a state actor, generally falls outside the Due Process Clause, compare *Flagg Bros., Inc. v. Brooks*, 436 U.S. 149 (1978). The waiver analysis also connects to *Szukhent* and *Overmyer*: a printed form can appoint an agent for service, but it waives a constitutional hearing right only if the waiver is clear, and bargaining power bears on enforcement.

Connecticut v. Doebr

Citation

Connecticut v. Doebr, 501 U.S. 1 (1991). Supreme Court of the United States, argued January 7, 1991, decided June 6, 1991. Justice White delivered the opinion of the Court as to Parts I, II, and III, which Chief Justice Rehnquist and Justices Marshall, Blackmun, Stevens, O'Connor, Kennedy, and Souter joined in full and Justice Scalia joined as to Parts I and III. Part IV, on the need for a bond, was joined only by Justices Marshall, Stevens, and O'Connor. Chief Justice Rehnquist, joined by Justice Blackmun, and Justice Scalia concurred in part and in the judgment, which was unanimous. The case appears at casebook page 286. [Full judicial opinion](#).

Parties

John F. DiGiovanni, who planned to sue Brian K. Doebr for assault and battery, obtained a prejudgment attachment on Doebr's home. The State of Connecticut intervened in the Court of Appeals, at that court's invitation under 28 U.S.C. § 2403(b), which allows a state to intervene to defend the constitutionality of its statute; Connecticut and DiGiovanni were the petitioners. Doebr, the homeowner, was the respondent. Doebr sought a declaration that the attachment statute violated due process; Connecticut and DiGiovanni defended it. *501 U.S. at 4-8*.

Material Facts

On March 15, 1988, DiGiovanni applied to the Connecticut Superior Court for an attachment of \$75,000 on Doebr's home in Meriden, Connecticut, in connection with a civil action for assault and battery he was bringing against Doebr in the same court. The suit did not involve Doebr's real estate, and DiGiovanni had no pre-existing interest in the home or any of Doebr's other property. Connecticut law allowed a court or judge to authorize prejudgment attachment of real property without a hearing on verification by oath of the plaintiff or another competent affiant that there was probable cause to sustain the validity of the plaintiff's claim. The statute did not require the plaintiff to post a bond to cover the defendant's damages if the attachment proved wrongful. *Id. at 5-6*.

DiGiovanni's affidavit, in five one-sentence paragraphs, stated that the facts in his complaint were true, that Doebr had willfully, wantonly, and maliciously assaulted him, that the assault broke his left wrist and bruised his right eye among other injuries, that he had incurred medical expenses, and that in his opinion these facts showed probable cause that judgment would be rendered for him. On the strength of these submissions, a Superior Court judge found probable cause and ordered the attachment to the value of \$75,000. The sheriff attached the property four days later. Only then did Doebr receive notice, and he had not yet been served with the complaint. The notice told him he could seek a hearing to argue that there was no probable cause, to ask that the attachment be vacated or modified or a bond substituted, or to claim an exemption. *Id. at 6-7*.

Procedural History

Instead of seeking the post-attachment hearing, Doebr sued DiGiovanni in federal district court, claiming that the statute violated the Due Process Clause of the Fourteenth Amendment. The District Court upheld the statute and granted summary judgment to DiGiovanni. A divided panel of the Second Circuit reversed in an opinion by Judge Pratt, reported as *Pinsky v. Duncan*, 898 F.2d 852 (2d Cir. 1990). The court held that *Sniadach* and its progeny permit a prior hearing to be postponed only where exceptional circumstances justify the delay and sufficient additional safeguards are present. It emphasized that, unlike the documentary issues in *Mitchell*, an assault claim turned on disputed facts about a fight that a judge could not reliably assess on the plaintiff's version alone, and Judge Pratt concluded, in his own view, that the lack of a bond was an independent defect. Connecticut had intervened in the Court of Appeals after oral argument there, at that court's invitation, and the Supreme Court granted certiorari. *Id.* at 7-8.

Issue

Does a state statute that authorizes prejudgment attachment of real estate without prior notice or hearing, without a showing of extraordinary circumstances, and without requiring the plaintiff to post a bond satisfy the Due Process Clause when invoked by a tort plaintiff who has no pre-existing interest in the property? Must due process also require a bond?

Rule and Holding

When a state statute lets a private party enlist state power to deprive another of property through prejudgment attachment, the adequacy of the procedure is judged by a modified version of the *Mathews v. Eldridge* test. The court considers, first, the private interest affected by the prejudgment measure; second, the risk of erroneous deprivation through the procedures used and the probable value of additional or alternative safeguards; and third, with principal attention, the interest of the party seeking the prejudgment remedy, with due regard for any ancillary interest the government may have in providing the procedure or avoiding the burden of greater protections.

Applying that test, the Connecticut statute violated due process as applied: the homeowner's interest was significant, the risk of error was substantial, and the plaintiff's interest in an ex parte attachment was minimal because he had no pre-existing interest in the property and did not allege that Doebr was about to transfer or encumber it. *Id.* at 9-18.

A four-Justice plurality would further have held that due process requires the plaintiff to post a bond or other security in addition to a hearing or a showing of exigency, and that a bond does not excuse the need for a hearing. *Id.* at 18-24 (*plurality opinion*).

Judgment

The Supreme Court affirmed the judgment of the Court of Appeals and remanded the case for further proceedings consistent with its opinion.

Reasoning

The Court began by placing the case in the line from *Sniadach* through *Fuentes*, *Mitchell*, and *North Georgia Finishing*, whose results varied with the type of remedy. *Mathews* had drawn on those cases to decide what process is due when the government itself deprives a person of property. Prejudgment remedies ordinarily arise in disputes between private parties, so the Court adjusted the third *Mathews* factor to focus principally on the interest of the party seeking the remedy rather than on the government's. *Id.* at 9-11.

The private interest was significant. For a homeowner, attachment ordinarily clouds title, impairs the ability to sell or otherwise transfer the property, taints the owner's credit rating, reduces the chance of obtaining a home equity loan or additional mortgage, and can even place an existing mortgage in technical default where the mortgage has an insecurity clause. Connecticut correctly argued that these effects do not amount to a complete, physical, or permanent deprivation and are less severe than the temporary total loss of household goods or wages. But the Court had never limited due process protection to such extreme deprivations; temporary or partial impairments of property rights caused by attachments, liens, and similar encumbrances are enough. *Id.* at 11-12.

The risk of erroneous deprivation was substantial. Attachment deprives the defendant of property on the basis of a contingency, a future damages award, that may never occur. Connecticut required a finding of probable cause to sustain the validity of the claim, but the meaning of that standard was obscure: the State first said it required a showing of the suit's objective likelihood of success; Doebr read it as requiring only the plaintiff's subjective good-faith belief; and at oral argument the State said it required something like a claim sufficient to survive a motion to dismiss. Under any of these readings the risk of error was too great. A standard satisfied by a facially valid complaint or the plaintiff's belief would allow attachment on claims a jury would reject or that the defendant would dispute, and in the good-faith case even on claims that failed to state a cause of action. Even under the strictest reading, the judge received only a skeletal, one-sided affidavit and could make no realistic assessment of the likelihood of success. An assault case does not involve the ordinarily uncomplicated matters that lend themselves to documentary proof, as a debt or delinquent payments do. *Id.* at 12-14.

The safeguards Connecticut provided did not adequately reduce that risk. The statute offered an expeditious post-attachment hearing, notice of that hearing, judicial review of an adverse decision, and a double-damages action if the suit was begun without probable cause. Similar protections existed in *Mitchell*, but there the plaintiff had a vendor's lien to protect, the dispute involved documentary matters, and the plaintiff had to post a bond. None of those features was present here. A later hearing might show that probable cause was lacking, but it could not cure the temporary deprivation an earlier hearing could have prevented. *Id.* at 14-15.

The interests favoring an ex parte attachment were too slight to justify the procedure. DiGiovanni had no existing interest in Doebr's real estate; his only interest was ensuring that assets would be available to satisfy a judgment if he won. He did not allege that Doebr was about to transfer or encumber the property or take any other step that would make it unavailable. The Court acknowledged that such an allegation, properly supported, would be an exigent circumstance permitting the hearing to be postponed until after attachment. The State's interest could not exceed the plaintiff's, and Connecticut could not plead administrative burdens because it already provided an immediate post-deprivation hearing. *Id.* at 16.

History and current practice supported the result. Traditional attachment statutes were limited to situations in which the defendant had taken or threatened action that would render a judgment uncollectible, were confined to creditors' claims, and required a bond. A survey of modern statutes showed that nearly every state requires a pre-attachment hearing, a showing of exigent circumstances, or both before an attachment may issue. *Id.* at 16-18.

In Part IV, the plurality addressed the bond. Without a bond, the risk of wrongful deprivation remains unacceptably high even with a hearing or exigency requirement, because until the post-attachment hearing the defendant has no protection against damages where no exigency in fact existed or the claim was worthless, and even a full hearing yields only an educated prediction of who will win. The double-damages remedy did not substitute for a bond, because recovering under it would require proof of something like

fraud, malice, or failure to state a claim. At the same time, a bond does not excuse a hearing; the harms from an erroneous attachment, such as a lost sale, a lost loan for a child's education, or a mortgage placed in technical default, cannot be fully undone by payment at the end of the case. *Id.* at 18-23 (*plurality opinion*).

Separate Opinions

Chief Justice Rehnquist, joined by Justice Blackmun, concurred in Parts I, II, and III and in the judgment. He observed that all the earlier cases involved personal property, such as bank deposits and chattels, and the physical seizure of the property, so the defendant lost its use and possession; Connecticut's attachment created only an incipient lien and left Doebr in possession. The Court's holding therefore broke new ground, but he agreed that the deprivation was significant. He declined to join Part IV, calling it unwise and unnecessary to decide hypothetical questions about bonds and exigent circumstances before concrete cases presented them. *Id.* at 26-30 (*Rehnquist, C.J., concurring*).

Justice Scalia joined Parts I and III and concurred in the judgment. Because the kind of attachment at issue was not a procedure recognized at common law, he agreed that its validity should be tested under *Mathews v. Eldridge* and that it failed that test. The casebook omits his opinion. *Id.* at 30 (*Scalia, J., concurring in part and concurring in the judgment*).

Notes

Doebr supplies the current framework for prejudgment remedies and answers the question the casebook asks after *Fuentes*: the Court now evaluates such remedies with a *Mathews*-type balance in which the plaintiff's interest replaces the government's as the principal third factor. The case also extends *Sniadach* and *Fuentes* to real estate and to deprivations that leave the owner in possession, which is the point Chief Justice Rehnquist identified as new. The holding is as applied: a plaintiff with a pre-existing interest, a documentary claim, or a supported allegation that the defendant is about to dissipate the property could justify a different result.

Shaumyan v. O'Neill shows that effect: the Second Circuit upheld the same statute as applied to a contractor who attached a homeowner's property in a payment dispute, because the evidence was largely documentary and the contractor had a substantial pre-existing interest once its labor and materials were incorporated into the home. The bond requirement in Part IV commanded only four votes and is not a holding of the Court. After *Doebr*, commentators questioned *lis pendens* statutes, under which a plaintiff claiming an interest in real property records a notice of the pending suit without a hearing; the Second Circuit upheld New York's statute in *Diaz v. Paterson*, applying the *Mathews* factors as construed in *Doebr*.